

AFZAL'S CASE SO FAR

Afzal Guru has benefited from the very democracy he attacked more than eight years ago

October 4, 2006 MHA forwards mercy appeal to the Delhi Government for its recommendation in regard to grant of clemency to the prisoner.

November 1, 2006 MHA sends a reminder to the Delhi Government.

November 27, 2006 MHA writes to it to expedite their comments.

December 13, 2006 MHA writes to the Delhi Government, asking for comments to be "expedited so that the petitions may be placed before the Honourable President of India for orders".

January 18, 2007 A reminder to the Delhi Government is sent.

April 10, 2007 MHA sends another reminder.

July 3, 2007 Yet another reminder is dispatched.

November 5, 2007 MHA again requests the Government "to



ATTACK ON PARLIAMENT

CONVICTED Afzal Guru

DATE OF CRIME December 13, 2001

CONVICTION August 4, 2005

MERCY APPEAL FILED

October 2006

STATUS Awaiting the Delhi Government's response. The MHA has so far written 16 letters and reminders to the Government, but is yet to get a recommendation.

furnish comments on the issue of grant of clemency".

January 7, 2008 MHA sends a reminder yet again.

February 18, 2008 MHA again writes, "Despite repeated reminders, the reply from the Government of NCT Delhi is still awaited."

June 4, 2008, January 23, April 17, 2009 MHA uses the same language in three letters. "It may be seen that a considerable time has since passed but the final comments from the Government of Delhi are still awaited."

November 27, 2009 After referring to its previous letters and reminders, the MHA writes, "We request you to expedite the comments/recommendations."

January 7 MHA sends a reminder.

April 27 MHA's latest reminder is dispatched.

Delhi Government has replied to only three letters and reminders on October 12, 2006, November 27, 2006 and April 25, 2008.

Copies of most of these letters are available with INDIA TODAY.

Home Affairs (MHA) for its views. These petitions are examined by the ministry in consultation with the concerned state governments. After taking views of the concerned state governments, the MHA sends the files to the President with the due recommendation of the home minister. In theory this should not take too long. But in practice, the lethargy of the system and the politics of the decision combine to let criminals sentenced to death for heinous crimes live on. Not just criminals, but terrorists too benefit from this sloth.

Nothing illustrates the delay better than the case of Murugan, Santhan and Arivu who were convicted for Rajiv Gandhi's assassination in May 1991. They were convicted by the trial court on January 28, 1998 and the sentence was confirmed by the Supreme Court on May 11, 1999. The terrorists filed a

mercy petition in 2000 and the MHA submitted their recommendation to the President on June 21, 2005. While the sentence of their accomplice Nalini was commuted to life, the trio has been on death row now for 11 years, awaiting word from the President. Or take Afzal Guru who was involved in the Parliament attack. He was convicted by the trial court in December 2002 and the sentence was confirmed by the high court and the Supreme Court in August 2005. Guru and his wife filed clemency petition in October 2006 when APJ Abdul Kalam was President. Since the crime was committed in Delhi, the MHA had to ascertain the views of the Delhi Government on the clemency petition. It is astonishing that since the first letter asking for their comments on October 6, 2006, the ministry has sent 15 reminders to the

Government of Delhi. Interestingly, the ministry has received only three responses to their 16 letters. In short, the clemency process has taken nearly nine years after the dastardly attack on the temple of democracy and justice is yet to be truly delivered.

In February this year, Minister of State for Home M. Ramachandran told Parliament that "cases of mercy petitions on receipt are processed expeditiously in consultation with the concerned governments/departments for a final decision of the President of India under Article 72 of the Constitution. However, the power under Article 72 of the Constitution does not contain any limitation as to the time, in which the power conferred might be exercised." Clearly, this lacuna is being exploited politically.

Thanks to the sloth in the system, a